

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

MOTION FOR FINAL JUDGMENT FOR DAMAGES AND JUDICIAL SALE

COMES NOW, the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, by and through the undersigned counsel, moves this Court to grant a final summary judgment against Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, in the above-styled cause and Plaintiff alleges the following facts:

1. Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, filed suit under Florida Statute §723.061(1)(a), for removal of a mobile home park lot tenant, for possession of the Plaintiff's real property, for damages and to enforce Plaintiff's landlord lien pursuant to Florida Statutes §713.691 and §713.77.
2. Plaintiff served KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION by process server on August 17, 2024 at 12:18 p.m.
3. Defendant, KALMAN HARTIG, by and through his undersigned counsel at the time, answered the complaint on August 22, 2024.
4. Defendant, KALMAN HARTIG, is the record owner of the mobile home located at 900 9th Avenue East, Lot #100, Palmetto, Florida 34221.
5. There are no lien holders on the mobile home known to the Plaintiff.

6. The Plaintiff brought an action for possession of its premises, that is, lot 100 of Colonial Manor, at 900 9th Avenue East, Palmetto, FL 34221.
7. As a result, the parties entered into a Stipulation to resolve the cause, which was filed with the Court and attached as **EXHIBIT A** to this Motion.
8. Pursuant to Paragraph 3(b) of the Stipulation, Defendant, KALMAN HARTIG, agreed to vacate Lot #100 by or before June 5, 2025 at 5:00 p.m., and not to reside at, use, or allow use of the premises thereafter. However, the inside and outside of Lot #100 continued to be used for the storage of books, bags, boxes, and various other miscellaneous items, creating an ongoing health hazard to the community.
9. The Stipulation clearly states in Paragraphs 6 and 9 that failure to vacate entitles Plaintiff to apply to the Court for a Writ of Possession, with the only issue before the Court being a sworn statement by Plaintiff demonstrating the violation.
10. Due to Defendant being in direct violation of Paragraphs 3(b), 6, and 9 of the Stipulation, on the 5th of June, 2025, Plaintiff filed an Affidavit of Violation of Stipulation in Lieu of Judgment and Order Granting Same with the Court pursuant to the Stipulation and accordingly requested that the Court issue a Writ of Possession for the premises to take effect after ten (10) days, and grant all relief originally sought in the Complaint, including judgment for possession, as well as any unpaid amounts, costs, and attorney's fees pursuant to Fla. Stat. § 723.062. The Judgment for Possession was sent to the Judge with the Affidavit of Violation and a Proposed Judgment for Possession, which the Judge executed on June 6, 2025 and is attached hereto as **EXHIBIT B**.
11. Subsequently, 10 days after the Judgment for Possession had been entered, Plaintiff

submitted a Proposed Writ of Possession to the Clerk of Court, which was executed on June 17, 2025 and served by the Manatee County Sheriff's Office on the 18th and 20th of June, when it put Plaintiff into possession of the property, the executed Writ of Possession is attached hereto as **EXHIBIT C**.

12. Plaintiff is entitled to a judgment for its damages, costs and attorney fees.
13. Plaintiff retained its attorney to represent it in this cause of action.
14. Pursuant to Fla. Statutes §713.691 Plaintiff is entitled to a lien against Defendants' personal property in the possession of the Plaintiff.
15. By virtue of this lien, Plaintiff is entitled to a judicial sale of personal property located on Lot 100 of Colonial Mobile Manor, that is, *1971 MAUVE RITZ-CRAFT, INC. double wide mobile home, VIN No. 07113337B, Title No. 0004961790 and VIN No. 07113337A, Title No. 0004961789.*
16. Plaintiff is entitled to a judgment against Defendants for damages arising out of the mobile home residential lot rental agreement and Florida Statute Section 723.061 for failure to pay rent, maintenance expenses, late fees, court costs and reasonable attorney fees arising out of the bringing of this action.
17. Pursuant to the Affidavit of Indebtedness of Plaintiff's Residential Manager, incorporated into this Motion and attached as **EXHIBIT D**, Defendants are indebted to Plaintiff in the sum of \$13,197.57 , which sum includes rent, late rent fees, water/sewer fees and late fees for failure to pay for water and sewer.
18. Pursuant to Fla. Statutes § 713.691 Plaintiff is entitled to a lien against Defendants' personal property on Lot ##100 in the possession of the Plaintiff, including the mobile

home identified below.

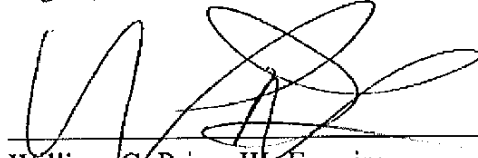
19. By virtue of the Writ of Possession issued and served upon the Defendants on June 20, 2025, Plaintiff came to be in possession of personal property belonging to Defendants, namely a *1971 MAUVE RITZ-CRAFT, INC. double wide mobile home, VIN No. 07113337B, Title No. 0004961790 and VIN No. 07113337A, Title No. 0004961789*, which is located on Lot # #100 of COLONIAL MANOR MHC HOLDINGS, I.I.C with the street address of 900 9th Avenue East, Lot #100, Palmetto, FL 34221, of the property leased by the Plaintiff to Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION.
20. Pursuant to Fla. Stat. § 45.031 Plaintiff is entitled to a judicial sale of the mobile home to satisfy its judgment for damages against Defendants.
21. Plaintiff being entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's Judgment against the Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, it has perfected its landlord lien against the personal property of Defendants, namely the mobile home identified as a *1971 MAUVE RITZ-CRAFT, INC. double wide mobile home, VIN No. 07113337B, Title No. 0004961790 and VIN No. 07113337A, Title No. 0004961789*, to which Plaintiff is entitled to sell to satisfy its Judgment against Defendants.
22. The Plaintiff is entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's Judgment against the Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, all costs of this proceeding and reasonable attorney's fees. An Affidavit of Time and Costs Expended, with costs in the

amount of \$10,451.23 is incorporated into this Complaint as **EXHIBIT E**. An Affidavit of Attorney's Fees is attached as **EXHIBIT F**.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's Judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Final Summary Judgment for Damages and Judicial Sale been furnished via U.S. Mail upon the Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #100, Palmetto, Florida, 34221 and to Kalman Hartig at sonigenesis@outlook.com on this 6th day of August, 2025.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

STIPULATION FOR SETTLEMENT IN LIEU OF JUDGMENT WITH ORDER
GRANTING SAME

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, by the authorized agent for the Plaintiff and also through its counsel, and the Defendant, KALMAN HARTIG, by their signatures below, and hereby stipulate and agree to the following:

1. Plaintiff instituted an action against the Defendant, KALMAN HARTIG, for a writ of possession for the residence located at Colonial Mobile Manor, Lot #100, 900 9th Avenue East, Palmetto, Florida 34221 for violations of Rules and Regulations of Colonial Manor MHC Holdings, LLC pursuant to Fla. Stat. §723.061(c)(2), specifically Rule 7 pertaining to using the exterior and carport for storage, resulting in a failure to maintain the premises on Lot #100 in a neat and clean manner.
2. Defendant has asserted defenses including for equitable estoppel, retaliatory conduct, unconscionability and unlawful eviction, all of which the Plaintiff denies.
3. In lieu of further litigation, which may result in the eviction of KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION of the premises located at

Defendant Initials KH Plaintiff Initials CP

EXHIBIT

A

700 9th Avenue East, Lot #100, Palmetto, Florida 34221, the parties do agree to the following terms and conditions for the settlement of this cause of action:

- a. The Plaintiff will, upon the Defendant complying with this Stipulation, issue a dismissal of the eviction and damages action with prejudice, with each party bearing their own costs and fees.
 - b. KALMAN HARTIG will vacate Lot #100 of Colonial Manor and Colonial Manor by or before June 5, 2025 at 5:00 p.m. to include *all* personal contents inside and outside of the home including food (both refrigerated and not refrigerated), but shall not be required to remove the mobile home located on Lot #100, which KALMAN HARTIG may sell under the conditions outlined below. "Vacate" means not residing at, not staying the night, not allowing anyone else to reside in the home, removing all possessions from the interior of the home, removing all food, and not using the interior or exterior of the home for storage.
 - c. KALMAN HARTIG shall pay May 2025 rent directly to Colonial Manor by or before 5 p.m. May 5, 2025.
 - d. KALMAN HARTIG shall pay rent for each successive month directly to the Plaintiff until he sells the mobile home, by or before the 5th day of each successive month. All payments due hereunder shall be deemed made when actually delivered to and received by the appropriate Landlord personnel. Payment shall not be deemed made when placed in the mail.
 - e. KALMAN HARTIG agrees that by his signature on this stipulation, he is agreeing to release any remaining rent from the Registry of the Court paid by him into the Registry of the Court.
 - f. If KALMAN HARTIG does not sell the mobile home by the dates as identified below, he agrees that he has abandoned the mobile home, which Plaintiff may sell as abandoned property pursuant to Florida Statutes Chapter 715.
4. KALMAN HARTIG may hire a mobile home sales agent to sell the mobile home, and if he does, will provide a true copy of the mobile home sales agent listing agreement to the Plaintiff by or before July 31, 2025. If he does so, Defendant will have until August 31, 2025 to sell the mobile home before it is agreed by the parties that he has abandoned the mobile home.

Defendant Initials *KH* Plaintiff Initials *GP*

5. If KALMAN HARTIG does not provide a mobile home listing agreement to the Plaintiff, KALMAN HARTIG agrees that he has abandoned the mobile home as of July 31, 2025.

6. Without admitting to the validity of the Plaintiff's cause of action, Defendant agrees that if Defendant does not vacate the home by June 5, 2025 at 5:00 p.m., or otherwise violates this Stipulation, Plaintiff will be entitled to apply to the Court for a writ of possession for the mobile home lot, with the only issue to be determined by the court being, by affidavit of Plaintiff and with notice to Defendant, that the Defendant has not vacated the premises, not timely paid rent, or otherwise violated paragraph 3 or 7 of this Stipulation.

7. KALMAN HARTIG agrees to sell the mobile home only to a buyer approved by the Plaintiff. The approval of the buyer shall not be unreasonably withheld by the Plaintiff. During the pendency of the sale or until he abandons the mobile home KALMAN HARTIG, he must maintain the exterior of the home as the rules and regulations of Plaintiff require.

(8) ~~If Defendant does not sell the mobile home by July 31, 2025, the mobile home is agreed by Defendant to constitute abandoned property which Plaintiff is entitled to sell pursuant to Chapter 715.~~ *KH as agreed on phone at 4:48 pm with Mr. Price on 5/2/25*

9. Upon Defendant's full compliance with the Settlement Agreement, Plaintiff will file a notice of dismissal of this cause of action and be responsible for its own costs and attorney fees. However, the Defendant agrees that should he violate paragraphs

Defendant Initials *KH* Plaintiff Initials *GP*

3, 6 or 7 of this Stipulation for Settlement in Lieu of Judgment, the Plaintiff shall be entitled to a writ of possession for the premises, procedurally by filing a sworn statement with the Court and providing notice to KALMAN HARTIG of the Defendant's violation, at which time, the Court shall consider by hearing scheduled by the Plaintiff with notice to the Defendant, whether KALMAN HARTIG has violated this Stipulation. Upon substantial proof of the KALMAN HARTIG's breach, the Plaintiff shall be entitled to a writ of possession for the premises and all of its remedies originally sought in its complaint, that is, a Judgment for Possession and the issuance of a Writ of Possession as provided in Florida Statute §723.062, and a judgment for all unpaid sums and all costs and attorney fees incurred by Plaintiff in the processing of this action.

10. By this Stipulation, each of the parties, individually and collectively, acknowledge that they have had an opportunity to evaluate their respective claims and the factual support for same, and are entering into this Agreement freely and voluntarily.

11. Except as provided by this Stipulation, each of the parties agree to bear their own attorney fees, costs and expenses arising out of the instant lawsuit, and waive any entitlement in law or equity which any may have against the other as to same.

12. The laws of the State of Florida shall govern this Agreement. The venue for this cause of action is Manatee County, Florida. Each party has executed this agreement after having discussed same with their respective counsel and no one has forced or threatened the parties to execute this Agreement. This Agreement may be executed

Defendant Initials *KH* Plaintiff Initials *AP*

in counterparts, and is subject to the Florida Uniform Electronic Transactions Act. The parties anticipate that this Agreement will be filed with the Clerk of Court in Manatee County, in the above styled case docket.

13. Upon the Defendant fully complying with this Stipulation, the Plaintiff will file its Notice of Dismissal within ten (10) days and provide same to KALMAN HARTIG by electronic mail.

14. A proposed order approving this Stipulation is attached for submission of this Stipulation to the Court.

The Court reserves jurisdiction to enforce this Stipulation.

Executed by the parties on the dates identified with each signature.

Dated: May 2nd, 2025

Kalman Hartig
Kalman Hartig
900 9th Avenue East Lot 100
Palmetto, FL 34221
Email: soulgenesis@gmail.com
Pro-Se Defendant

Dated: May 6, 2025

William C. Price, III, Esquire
William C. Price, III, Esquire
Florida Bar No. 0333824
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
pleadings@wcprieclaw.com
Attorney for Plaintiff, Colonial
Manor MHC Holdings, LLC d/b/a
Colonial Mobile Manor

Dated: May 2, 2025

Cheryl Peake
COLONIAL MANOR MHC HOLDINGS, LLC
By: Cheryl Peake
Park Manager

Defendant Initials HH Plaintiff Initials CP

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

JUDGMENT FOR POSSESSION

THIS CAUSE came on to be heard on Plaintiff's Complaint Seeking Possession (Eviction) and Damages. Based on the Defendants', KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION Default, having defaulted in the performance in their duty under the Stipulation entered into on May 5, 2025 and the Court having reviewed the pleadings and Affidavit of Violation sworn to by the representative of the Plaintiff in this matter and being otherwise fully advised in the premises, it is therefore:

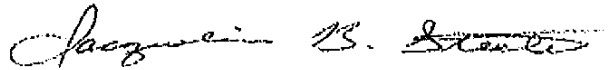
ORDERED and ADJUDGED:

That the tenancy of Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, who occupy the home located at 900 9th Ave East Lot #100, Palmetto, Manatee County, Florida 34221, in Colonial Mobile Manor Mobile Home Park (the "Property"), is hereby terminated, and the Clerk of Court shall issue a Writ of Possession ten (10) days from the date hereof directing the Sheriff of Manatee County, Florida to assist the Plaintiff in removing all Defendants from the premises located above and put the Plaintiff in possession after first conspicuously posting the Writ of Possession for twenty-four (24) hours, together with any personal property, from the Property; Defendants shall be forever removed and barred from entry onto the Property forevermore.

Plaintiff shall be entitled upon execution of the writ of possession to the removal of the Defendants by the Manatee County Sheriff from the subject home and from all of Lot #100 in the park, and the Plaintiff shall also upon execution of the writ of possession be entitled to change the locks on the home pursuant to its right to store the home as provided by §723.062(2), Florida Statutes.

By changing the locks, Plaintiff is electing to store the home on the lot as allowed by the statute. Once the locks have been changed, Plaintiff is not required to provide a copy of the new keys to Defendants.

DONE AND ORDERED at in the Manatee County Judicial Center, Bradenton, Manatee County, Florida.



eSigned by JACQUELINE STEELE, County Judge 06/06/2025 11:47:53 zDCupJim

JACQUELINE B. STEELE
COUNTY JUDGE for
HEATHER DOYLE
COUNTY JUDGE

cc: William C. Price, III, P.A.; pleadings@wepricelaw.com; 522 12th Street West, Bradenton, FL 34205
Kalman Hartig, sonigencsis@gmail.com; 900 9th Ave East, Lot #100, Palmetto, FL 34221
Any Unknown Party(s) in Possession; 900 9th Ave East, Lot #100, Palmetto, FL 34221

**MANATEE COUNTY SHERIFF'S OFFICE
RETURN OF SERVICE**

Case No. 2024CC002691
State: Florida
County: Manatee
Court: Manatee County

Plaintiff: Colonial Manor MHC Holdings LLC

Defendant: Kalman Hartig and Any Unknown Party(s) in Possession

Plaintiff/Attorney:
William C Price III PA
522 12 St W
Bradenton, FL 34205

Person to
Serve: Kalman Hartig and Any Unknown Party(s) in Possession

Address: 900 9 Ave E
Lot 100
Palmetto, FL 34221

Type of Writ: Writ of Possession, Evictions Involving Animals Information Sheet

The above referenced writ was received on June 17, 2025 at 1:49 PM and further executed the same in Manatee County, Florida as follows.

Type: Posted

Served: 6/18/2025 @ 10:07 AM

By: Kevin Ralston

Note: ADVISED TENANT

Type: Possession

Served: 6/20/2025 @ 11:30 AM

By: Chad Richards

Note: TENANT EVICTED, LOCKS CHANGED

Posted by attaching a copy of this process, in a conspicuous place on the property described within. Writ of Possession was Executed. Possession of property was turned over to: BRIAN NAYS.

CHARLES R. WELLS, SHERIFF
MANATEE COUNTY, FLORIDA

Sheriff's Number: 25011396

Dep. C. Richards

Chad Richards 11001618

Deputy, Manatee County Sheriff's Office

EXHIBIT

C

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
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Defendants.

WRIT OF POSSESSION

THE STATE OF FLORIDA
TO THE SHERIFF OF MANATEE COUNTY, FLORIDA

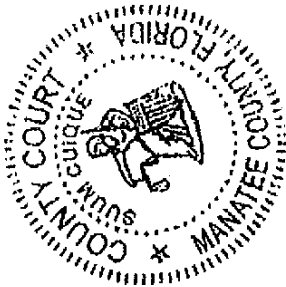
YOU ARE COMMANDED to remove all persons from the following described property
in Manatee County, Florida, to-wit:

900 9th Avenue East, Lot 100, Palmetto, Florida 34221

and to put the Plaintiff in possession of it.

RCD CIV MSS MANATEE FL
JUN 17 2025 PM 1:49

DATED on June 17, 2025.



ANGELINA "ANGEL" COLONNESO
Manatee County Clerk of Courts and Comptroller

By: [Signature]
Deputy Clerk

cc: William C. Price, III, P.A.; pleadings@wcpriecelaw.com; 522 12th Street West, Bradenton, FL 34205
Kalman Hartig, sonigenesis@gmail.com; 900 9th Ave East, Lot #100, Palmetto, FL 34221
Any Unknown Party(s) in Possession; 900 9th Ave East, Lot #100, Palmetto, FL 34221

Contact Person: Cheryl Peake, Park Manager, Colonial Manor MHC Holdings, LLC
Telephone: (941) 722-3191

06/24/25 4:00 PM

25011386

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
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Defendants.

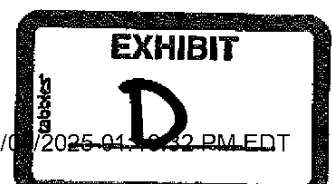
AFFIDAVIT OF INDEBTEDNESS

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority, personally appeared CHERYL PEAKE, the
Park Manager of Colonial Manor MHC Holdings, LLC, who, being first duly sworn, deposes
and says:

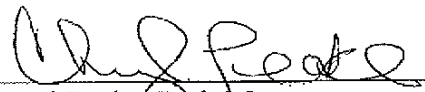
The following is a breakdown of the fees, costs and expenses incurred in the above
referenced cause relating to 900 9th Avenue East, Lot 100, Palmetto, FL 34221:

Past Due Rent including late fees, Water and Sewer fees, and Repair of Utilities		\$2,746.34
Attorney Fees		\$8,880.00
Costs		\$1,571.23
Total Indebtedness:		\$13,197.57



FURTHER AFFIANT SAYETH NOT.

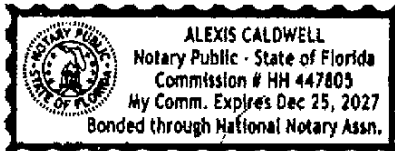
COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR
900 9th Avenue West
Palmetto, Florida 34221

By: 
Cheryl Peake, Park Manager

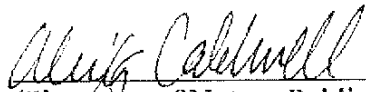
STATE OF FLORIDA
COUNTY OF MANATEE

Sworn to (or affirmed) and subscribed before me by means of ☒ physical presence or ☐ online notarization, personally appeared, CHERYL PEAKE, known to be the same person described in and who executed the foregoing, and acknowledged to me that they executed the same and swear that all statements contained therein are true and correct.

IN WITNESS WHEREOF, I have here unto set my hand and seal this the 5th day of August, 2025.



{SEAL}


(Signature of Notary Public – State of Florida)

Alexis Caldwell
(Print, Type, or Stamp Commissioned Name of Notary Public)

X Personally Known, OR ___ Produced Identification
Type of Identification Produced _____

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
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Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
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Defendants.

AFFIDAVIT OF TIME AND COSTS EXPENDED

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority duly authorized by the laws of the State of Florida to administer oaths, personally appeared **WILLIAM C. PRICE, III, ESQUIRE**, of 522 Twelfth Street West, Bradenton, Florida, who being first duly sworn, deposes and states as follows:

1. WILLIAM C. PRICE, III, attorney for the Plaintiff, states that this is a breakdown of the actual time expended and costs advanced in the pursuit of the Plaintiff's claim including the time anticipated to be expended at the hearing on Plaintiff's Hearing on Motion for Summary Judgment and the Judicial Sale of the Mobile Home which is the subject of this cause of action and affides that the amount of time expended and the acts taken on behalf of the Plaintiff are as follows:

ATTORNEY'S FEES				
Date	Services Rendered	Hours	Rate	Amount
06/04/2024	Conference with park manager, draft of Violation Letter for Hartig (based upon expected ruling of Court in response to failure to evict tenant the last time tenant cured).	.2	\$300.00	\$60.00
06/10/2024	Redraft of Notice of Violation of Park Rules.	.3	\$300.00	\$90.00
06/27/2024	Preparation of Amended Notice of Termination of Lease with Instructions for Manager.	.3	\$300.00	\$90.00
07/03/2024	Draft of Complaint for Eviction, telephone conference with client, site review, letter to opposing counsel.	2	\$300.00	\$600.00



07/10/2024	Letter to opposing counsel and telephone conference about rule violation.	.3	\$300.00	\$90.00
08/01/2024	Draft of Complaint and Summonses	1.2	\$300.00	\$360.00
08/06/2024	Letter to opposing counsel in effort to settle via stipulation.	.5	\$300.00	\$150.00
09/18/2024	Review of summonses, Motion for Default.	.3	\$300.00	\$90.00
09/19/2024	Review of Answer and Affirmative Defenses.	.2	\$300.00	\$60.00
10/04/2024	Motion to Determine Rent, Reply to Affirmative Defenses	1	\$300.00	\$300.00
10/21/2024	Reply and Affirmative Defenses, telephone conference to opposing counsel, Motion for Payment of Rent into Registry of Court	1	\$300.00	\$300.00
11/01/2024	Preparation of Stipulation in lieu of judgment and preparation of attorney fee affidavit, preparation of Order Granting Stipulation.	1.5	\$300.00	\$450.00
11/06/2024	Correction of Stipulation for rent due, telephone conference to client.	.2	\$300.00	\$60.00
11/12/2024	Letter to opposing counsel (who obtained tenant permission to settle).	.2	\$300.00	\$60.00
12/17/2024	Defendant's Pro Se Notice of Appearance, Motion for Judgment, Motion for Summary Judgment.	.5	\$300.00	\$150.00
12/30/2024	Renewed Notice of hearing for payment of rent.	.1	\$300.00	\$30.00
01/24-01/28/25	Preparation for hearing on Motions for Summary Judgment and to pay rent.	1.3	\$300.00	\$390.00
02/03/2025	Preparation for hearing, attendance at hearing, draft of order granting payment of funds into registry of court, notice case at issue and ready for trial, telephone call to Hartig about payment into registry of court.	2.5	\$300.00	\$750.00
02/04/2025	Notice that case at issue, letter to client about trial date, request for deposition.	0.4	\$300.00	\$120.00
02/06/2025	Notice Case at Issue (to prevent jury trial), Motion for Default against unknown tenants.	.2	\$300.00	\$60.00
02/10/2025	Review of Motion and objections by tenant.	.2	\$300.00	\$60.00
02/24/2025	Attendance at hearing on payment of rent (other matters not heard).	.5	\$300.00	\$150.00
03/05/2025	Preparation of exhibits, preparation for deposition, attendance at deposition, letter to park manager.	3	\$300.00	\$900.00
03/11/2025	Preparation for and attendance at hearing on multiple motions of defendant, preparation of order on motions, email to client regarding eviction issues and specific request for records.	3	\$300.00	\$900.00

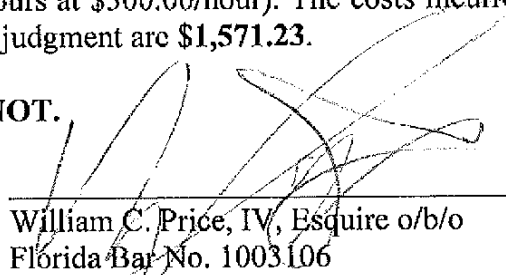
03/13/2025	Conference with client and determination of legal acts to be performed.	.1	\$300.00	\$30.00
03/21-3/25/25	Review of order from court, review of subpoena records regarding service of out of state witness, meeting with client, to Rolf, subpoenas to witnesses, request for records from Florida DBPR, trial prep.	1.6	\$300.00	\$480.00
04/17/2025	Conference with client about multiple matters.	.1	\$300.00	\$30.00
04/28/2025	Issue of photographs of condition of defendant's property, telephone call to client park manager, pulling of photographs identifying the condition of the property, research on timing of photographs.	.6	\$300.00	\$180.00
04/29-04/30/25	Proposal for settlement draft to defendant, t/c to client, review of photographs with dates and notice of filing, t/c to Witness Esparsa about appearing without being held in contempt, follow up with her law firm about immigration issues, follow up with client about settlement.	2	\$300.00	\$600.00
05/02/2025	Conference with client and Defendant, generation of proposed agreement, modifications and corrections, draft of proposed order, transmittal to court.	2.3	\$300.00	\$690.00
06/08-06/12/2025	Telephone call from Kalman Hartig, brief follow-up with client, review of motion for extension, review of order denying extension, preparation of judgment for possession review, brief call to client	.4	\$300.00	\$120.00
09/01/2025 Anticipated	Preparation of Notice of Sale, Publication, Certificate of No Disbursement, Certificate of Sale, Certificate of Title	.6	\$300.00	\$180.00
09/01/2025 Anticipated	Attendance at Judicial Sale and trip to tag agency for title, preparation of Power of Attorney and Application for Title	1.0	\$300.00	\$300.00
		29.6		\$8,880.00

DATE	COSTS ADVANCED	AMOUNT
06/10/2024	Postage and Delivery: Certified Mail/Return Receipt Requested-Notice of Violation letter to Kalman Hartig and Any Unknown Tenant(s)	\$8.69
06/28/2024	Postage and Delivery: Certified Mail/Return Receipt Requested-Notice of Termination of Lease to Kalman Hartig and Any Unknown Tenant(s)	\$8.69
08/07/2024	Florida ePortal: Filing Fee Complaint Seeking Eviction, etc., and Summonses issued Kalman Hartig and Any Unknown Tenant(s)	\$434.70

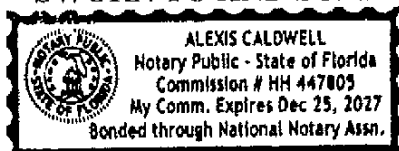
08/17/2024	Process Server: Service of Summons and Complaint on Kalman Hartig and Any Unknown Tenants	\$100.00
03/26/2025	Postage and Delivery: Mailing Response to Request for Production to Kalman Hartig and Any Unknown Tenant(s)	\$10.40
04/28/2025	Colonial Manor vs. Kalman Hartig Transcript 2024-CC-2691 INVOICE #KS-402296	\$541.55
04/29/2025	Postage and Delivery: Mailing Notice of Filing to Kalman Hartig and Any Unknown Tenant(s)	\$4.61
04/30/2025	Postage and Delivery: Mailing Notice of Filing Photo Exhibits with Dates Kalman Hartig and Any Unknown Tenant(s)	\$2.59
05/02/2025	Colonial Hartig Subpoenas for Trial	\$150.00
06/16/2025	Manatee County Sheriff's Office: Service- Writ of Possession	\$90.00
09/01/2025	Cost of Judicial Sale (To Clerk)	\$70.00
09/01/2025	Publication of Notice of Judicial Sale	\$150.00
10/01/2025	Costs of Title Transfer	TBD
	TOTAL	\$1,571.23

2. The total sum of attorney time expended, not including time expended to obtain attorney's fees to date is **\$8,880.00** (29.6 hours at \$300.00/hour). The costs incurred to date not including expenses of collection of the final judgment are **\$1,571.23**.

FURTHER AFFIANT SAYETH NOT.


 William C. Price, IV, Esquire o/b/o
 Florida Bar No. 1003106
 William C. Price, III, Esquire
 Florida Bar No. 0333824
 WILLIAM C. PRICE, III, P.A.
 522 Twelfth Street West
 Bradenton, Florida 34205
 Telephone: (941) 747-8001
 Fax: (941) 747-3730
wcp3@wcpricelaw.com
 Attorney for the Plaintiff

SWORN TO AND SUBSCRIBED this 6th day of AUGUST, 2025.




 Notary Public

My Commission Expires:


 Printed Name of Notary Public

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

AFFIDAVIT OF ATTORNEY'S FEES

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority, personally appeared **E. BLAKE MELHUISH, ESQUIRE**, of Bradenton, Florida, who being first duly sworn, deposes and states as follows:

1. I have been a practicing attorney in Manatee County, Florida, since 1989 and, as such, I am familiar with the fees charged by attorneys for legal proceedings in this Court and in Manatee County, Florida.
2. I have no interest whatsoever in this cause, and am not associated in the practice of law with William C. Price, III, P.A., although we share office space.
3. I have had occasion to examine the file in this cause, and I am familiar with same.
4. That on the basis of the examination of the file, the difficulty of the matter and the time expected to perform legal services, and my knowledge of the fees customarily charged, it is my opinion that \$300.00 per hour is a reasonable hourly fee for the services rendered, Twenty-Nine and Six-Tenths (29.6) hours reasonable amount of time to perform the services required of attorney in the above styled matter and that the sum of \$8,880.00 is a reasonable attorney's fee for prosecution of the above styled cause.



FURTHER AFFIANT SAYETH NOT.



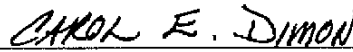
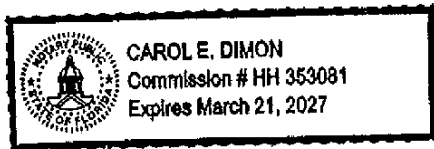
E. BLAKE MELHUIH, ESQUIRE
Florida Bar No. 0825972
E. BLAKE MELHUIH, P.A.

SWORN TO AND SUBSCRIBED before me, by means of ☒ physical presence or ☐ online notarization, by E. BLAKE MELHUIH, ESQUIRE, who is personally known, on this 6th day of August, 2025.



Notary Public, State of Florida at Large

My Commission Expires:



Printed Name of Notary Public